

THE PATENTS ACT, 1970 (AS AMENDED) - SECTION 3(p) AND TRADITIONAL KNOWLEDGE GUIDELINES
OFFICE OF THE CONTROLLER GENERAL OF PATENTS, DESIGNS AND TRADE MARKS (CGPDTM), INDIA

Section 3: What are not inventions:

The following are not inventions within the meaning of this Act:

Section 3(p): "an invention which in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components."

Statutory Rationale and Implementation Guidelines:

1. Traditional knowledge of Indian medicine systems (Ayurveda, Siddha, Unani, Yoga, Sowa-Rigpa) is preserved in ancient treatises (such as Charaka Samhita, Sushruta Samhita, Ashtanga Hridaya, Bhavaprakasha) and documented electronically in the Traditional Knowledge Digital Library (TKDL).
2. Any claim claiming an Ayurvedic formulation consisting of known herbal ingredients for indications already recorded in classical literature is statutorily barred under Section 3(p).
3. Mere juxtaposition or mixing of two or more known herbs (e.g. Ashwagandha + Tulsi + Giloy) without a synergistic, non-obvious, surprising technical effect demonstrated by comparative pharmacological data cannot overcome Section 3(p) and Section 3(e) (mere admixture).

EXAMINATION GUIDELINES FOR PATENT APPLICATIONS RELATING TO TRADITIONAL KNOWLEDGE AND BIOLOGICAL MATERIALS

Guidelines issued by CGPDTM:

1. Disclosure Requirements (Section 10(4)(ii)(D)):

The applicant must disclose the source and geographical origin of any biological material used in the invention in the patent specification.

If the biological material is obtained from India, the applicant must complete the declaration that the necessary approval from the National Biodiversity Authority (NBA) has been obtained or will be submitted before grant (Section 6 of Biological Diversity Act).

2. Rebuttal of Section 3(p) Objections:

To overcome a Section 3(p) objection, the applicant must establish:

- That the claimed combination or extract produces a synergistic effect that is unexpected and superior to the individual known components;
- Experimental comparative data demonstrating that the effect of (A + B) is significantly greater than the additive effect of A alone plus B alone;
- Novel extraction processes yielding a specifically characterized, non-obvious fraction with distinct biomarker profiles that were never disclosed in traditional treatises.

3. Revocation under Section 64(1)(p):

A patent granted in violation of Section 3(p) or where the complete specification does not disclose or wrongly mentions the source or geographical origin of biological material is liable to revocation under Section 64(1)(p) and Section 64(1)(j).